



CHAPTER xv.

An Act for conferring further powers on the Mirfield Gas Company. A.D. 1906.
[29th May 1906.]

WHEREAS by the Mirfield Gas Act 1860 (hereinafter referred to as "the Act of 1860") the Mirfield Gas Company (hereinafter referred to as "the Company") were incorporated and were empowered to supply with gas the township and parish of Mirfield and certain other districts in its neighbourhood: 23 Vict. c. xviii.

And whereas by the Mirfield Gas Act 1879 (hereinafter referred to as "the Act of 1879") the area of supply of the Company was extended and further powers were conferred on the Company: 42 & 43 Vict. c. cxxxviii.

And whereas the following is a statement of the capital and of the borrowing powers of the Company:—

CAPITAL.

Act of Parliament authorising Shares.	Description of Shares.	Maximum Dividend per Cent.	Total paid up.	Premiums received.	Remain- ing to be issued.	Total authorised.
Act of 1860	Ordinary shares	10	£ 35,000 0 0	£ 0 0 0	—	£ 35,000 0 0
Issued without Parliamentary authority.	Ordinary shares	10	8,000 0 0	0 0 0	—	8,000 0 0
Act of 1879	Ordinary shares	7	13,050 0 0	6,950 0 0	—	20,000 0 0
			£56,050 0 0	£6,950 0 0	—	£63,000 0 0

A.D. 1906.

BORROWING.

Act of Parliament authorising Loan.	Description of Loan.	Rate of Interest.	Total borrowed.	Total authorised.
Act of 1860 -	Mortgage -	Not fixed -	£ 8,000 s. 0 d. 0	This sum was not borrowed but in lieu thereof shares for this amount were issued as above mentioned. 5,000 <i>l.</i> in respect of original capital of 48,000 <i>l.</i> 5,000 <i>l.</i> in respect of additional capital.
Act of 1879 -	Mortgage -	Not exceeding five per cent.	10,000 0 0	

And whereas the whole of the capital sums raised and the moneys borrowed as above mentioned have been applied to the general purposes of the Company to which capital is properly applicable :

And whereas the demand for gas in the district in which gas is supplied by the Company has greatly increased and is still increasing and it is expedient that further powers as to capital should be granted to the Company to enable them to lay down additional mains and to extend and develop the Company's business :

And whereas it is expedient that the existing share capital of the Company should be converted and consolidated as provided by this Act and that the Company be authorised to raise additional capital for the purposes of their undertaking :

And whereas it is expedient that the other powers hereinafter mentioned should be conferred on the Company :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Mirfield Gas Act 1906 and the Mirfield Gas Act 1860 the Mirfield Gas Act 1879 and this Act may be cited together as the Mirfield Gas Acts 1860 to 1906.

Interpretation.

2. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated

herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction and in particular the word "share" shall be deemed equivalent to "stock" and the word "shareholder" shall be deemed equivalent to "stockholder":

A.D. 1906.

And in this Act—

"The Company" means the Mirfield Gas Company;

"The Act of 1860" means the Mirfield Gas Act 1860;

"The Act of 1879" means the Mirfield Gas Act 1879.

3. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely):—

Incorporation of general Acts.

The Gasworks Clauses Acts 1847, and 1871 Provided that section 13 of the former Act shall be read as if the words "or any premises" were inserted after the words "private building":

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters and things (that is to say):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money by the Company on mortgage or bond;

The consolidation of the shares into stock;

The general meetings of the Company and the exercise of the right of voting by the shareholders;

The appointment and rotation of directors;

The powers and proceedings of directors;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested:

A.D. 1906.

The Lands Clauses Consolidation Act 1845 (except the provisions thereof with respect to the entry upon purchase and taking of lands otherwise than by agreement):

Sections 21 to 23 inclusive of the Companies Act 1900 relating to the audit of accounts of companies with the proviso that the auditor or auditors so appointed need not hold stock in the company but shall be a member or members of the Institute of Chartered Accountants or the Incorporated Society of Accountants and Auditors:

Parts I. II. and III. of the Companies Clauses Act 1863:

And the Companies Clauses Acts 1869 1888 and 1889.

Conversion
of original
and new
shares of
Company
into stock.

4. As and from the first day of January one thousand nine hundred and seven all the existing shares of the Company shall be converted and consolidated into one class of stock to be called ordinary stock according to the following scales (that is to say):—

Ten pounds ordinary stock for every original share of five pounds; and

Fourteen pounds ordinary stock for every new share of ten pounds.

As on and from the said first day of January one thousand nine hundred and seven there shall be by virtue of this Act created such nominal amounts of five per centum ordinary stock as shall be necessary for the purpose of carrying into effect such conversions and the amounts of ordinary stock to which the holders of original five pound shares and new ten pound shares respectively become by virtue of this Act entitled in substitution for such existing original and new shares shall be vested in such holders as from the first day of January one thousand nine hundred and seven and shall be forthwith registered in their respective names in the books of the Company Provided that no person shall become entitled to any fractional part of one pound of the said five per centum ordinary stock.

Ordinary
stock to be
held on
same trusts
&c. as shares
for which it
is substi-
tuted.

5. All ordinary stock issued to holders of original five pound shares or new ten pound shares shall be held on the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those in upon or to which the existing shares for which the ordinary stock is substituted were held or were subject immediately before the first day of January one thousand nine hundred and seven and shall be dealt with applied

and disposed of accordingly and so as to give effect to and not to revoke any deed, will or other instrument disposing of or affecting any such existing original or new shares and trustees executors or administrators or other incapacitated persons may accept ordinary stock in substitution for the existing original or new shares held by them and may subject to the provisions of this Act retain dispose of or otherwise deal with the same as they might have retained disposed of or otherwise dealt with such existing original or new shares. A.D. 1906.

6. The Company shall call in the certificates of the existing original five pound and the new ten pound ordinary shares and shall issue in exchange free of charge for those certificates to the respective holders thereof certificates of ordinary stock of the respective amounts to which those holders are by this Act respectively entitled but no holder shall be entitled to a certificate of the ordinary stock so substituted for the aforesaid existing ordinary shares held by him until he shall have delivered up to the Company to be cancelled the share certificate or certificates for which such certificate of stock is to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof and shall have given such guarantee or indemnity as the Company may require. Provided always that until the issue of the certificate of such ordinary stock the share certificate for which such new certificate is to be substituted shall according to the amounts of ordinary stock to be substituted by virtue of this Act for the existing ordinary shares which they represent have and confer the same rights and advantages as if they were certificates for those respective amounts of ordinary stock which are to be so substituted for such existing ordinary shares but if any holder of any existing ordinary shares of the Company neglect or omit to send or deliver to the Company his existing certificate for the period of one year after notice in writing sent by post to the address appearing in the shareholders' address book the Company may suspend the payment of any dividend declared or made payable upon or in respect of the ordinary stock so held by him until such existing certificate is sent or delivered to the Company or is proved to the reasonable satisfaction of the directors of the Company to have been lost or destroyed. On the issue of any certificate of ordinary stock the certificate or certificates for which it is substituted shall be cancelled.

Certificates
to be called
in and others
issued.

A.D. 1906.

Transfers of stock and shares although by present name to be valid.

7. All transfers or other dispositions of existing original five pound and new ten pound ordinary shares as existing up to the conversion thereof into ordinary stock by virtue of this Act shall after such conversion and notwithstanding this Act be valid and have due effect given to them respectively as transfers for the respective amounts of ordinary stock which the existing original five pound and new ten pound ordinary shares thereby expressed to be transferred or disposed of represent or which are or may be substituted for the same under the provisions of this Act although the instrument transferring or disposing thereof shall describe the same by the name or denomination which the shares transferred or disposed of had before such conversion and the bequest of or any covenant or provision of any deed or agreement relating to any specific or nominal amount of any existing shares shall be held to apply to ordinary stock of the amount into which such shares shall have been converted.

Stock to be transferable in multiples of one pound.

8. All ordinary stock of the Company shall be issued and be transferable only in amounts of one pound or multiples thereof Notice of the effect of this enactment shall be stated in all certificates of such stock.

Rights of holders of stock.

9. Holders of ordinary stock shall be entitled to participate in the dividends and profits of the Company according to the amount of their interests in that stock and subject to the provisions of this Act such interests shall in proportion to the amount thereof confer on the respective holders of such stock the same privileges and advantages as would have been conferred by the existing ordinary shares for which the stock is substituted.

Application of provisions of Companies Clauses Consolidation Act 1845 to ordinary stock.

10. Subject to the provisions of this Act sections 62 to 64 of the Companies Clauses Consolidation Act 1845 shall extend and apply to the ordinary stock of the Company and sections 18 to 20 of that Act shall be deemed and construed to include and apply to ordinary stock and dividends thereon as if such stock and dividends had been expressly named in the said section.

Number of stockholders to call extraordinary meetings.

11. The number of holders of ordinary stock on whose requisition an extraordinary meeting of the Company may be required to be convened shall be not less than seven holding in the aggregate stock of not less nominal value than seven hundred pounds in the capital of the Company.

Additional capital.

12. The Company may raise additional capital not exceeding in the whole ninety thousand pounds by the creation and issue of

ordinary stock but no such stock shall vest in the person accepting the same unless and until the full price of such stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of ninety thousand pounds.

A.D. 1906.

13. Notwithstanding anything in this Act contained the Company shall when any stock created under the powers of the section of this Act the marginal note whereof is "Additional capital" is to be issued and before offering the same to the holder of any other stock in the Company and whether the ordinary stock of the Company is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of the stock and that the reserved price put upon such stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of stock in the Company except that if any bidding or offer by tender of any holder or holders of stock be the same in amount as any bid or offer made by any other person the bidding or offer of such holder or holders of stock shall be accepted in preference and preference may in like manner be given to any employee of the Company or any consumer of gas supplied by the Company whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of stock in the Company.

New stock to be offered by auction or tender.

14. It shall be a condition of any sale of stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Purchase money to be paid within three months.

15. The intention to sell any such stock by auction or by tender shall be communicated in writing to the clerks of the councils of the urban districts of Ravensthorpe Mirfield Liversedge Thornhill and Kirkheaton and to the clerk of the rural district

Notice to be given as to sale of stock.

A.D. 1906. council of Halifax and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply.

Disposal of
stock not
sold by
auction or
tender.

16. When any stock created under the powers of this Act has been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 or to the employees of the Company or to the consumers of gas supplied by the Company or partly to one and partly to another or others Provided always that any stock not so disposed of or so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of stock created under the powers of this Act except that the reserved price put upon such stock may upon such second sale if the directors of the Company think fit be less than the nominal amount thereof and any stock not then sold may be disposed of by the directors or offered to the holders of ordinary stock or to such employees or consumers as aforesaid at not less than the last-mentioned reserved price and so from time to time until the whole of such stock is sold.

Application
of premium
arising on
issue of
stock.

17. Any sum of money which shall arise from the issue of any such stock by way of premium after deducting therefrom the expenses of and incidental to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend Provided that all such sums shall be deemed to be part of the nominal and paid-up capital of the Company for the purpose of determining the powers of the Company to raise money by borrowing and the amounts they may place to the reserve renewal or insurance fund respectively.

Rights &c. of
holders of
additional
capital.

18. Subject as hereinafter provided the additional capital raised by the Company under this Act shall be part of the general capital of the Company and save as otherwise provided

in respect of such capital by the provisions of this Act the holders of stock in such additional capital shall be entitled to the like rights of voting and any other rights qualifications and privileges in proportion to the amount of their stock from time to time paid up and be subject to the like provisions and liabilities as the holders of stock issued under this Act to the holders of the shares in the present capital of the Company. A.D. 1906.

19. The Company may after the first day of January one thousand nine hundred and seven borrow on mortgage of the undertaking any sum or sums of money not exceeding (inclusive of the sum of ten thousand pounds already borrowed in pursuance of the Act of 1879) the sum of twenty-five thousand pounds. Power to borrow in respect of consolidated capital.

20. The Company may also subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued but no part thereof shall be borrowed until the whole of the stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such stock and premium (if any) has been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he may think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof. Power to borrow in respect of additional capital.

21. The Company may in respect of the powers of raising money on mortgage conferred upon them by this Act create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under any previous Act or this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock issued after the passing of this Act. Debenture stock.

A.D. 1906.

Priority of
mortgages
and debenture stock
over other
debts.

22. All money raised by the Company on mortgage under the provisions of any former Act relating to the Company or under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages.

Existing
mortgages to
have priority.

23. All mortgages granted by the Company in pursuance of the Acts of 1860 and 1879 and subsisting at the passing of this Act shall during the continuance of such mortgages and subject to the provisions of the Acts of 1860 and 1879 have priority over any mortgages granted by virtue of this Act.

Arrears may be
enforced by ap-
pointment of
receiver.

24. The provisions of section 28 of the Act of 1879 shall apply to all mortgages made or granted by the Company under the powers of this Act.

Application
of moneys.

25. All moneys raised under this Act whether by stock debenture stock or borrowing shall be applied for the purposes of this Act and for the general purposes of the Company being in all cases purposes to which capital is properly applicable.

Receipt in
case of per-
sons not sui
juris.

26. If any money is payable to a stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be sufficient discharge to the Company.

Quorum at
and place of
general
meetings.

27. On and after the first day of January one thousand nine hundred and seven all meetings of the Company shall be held at the general offices of the Company or at such other place within the limits of supply of the Company as the directors shall decide and give notice of in the notices convening such meeting. Such meetings shall be held yearly in the month of February and the quorum of every meeting of the Company shall be four stockholders holding in the aggregate not less than four thousand pounds in the capital of the Company.

Scale of
voting.

28. As from the first day of January one thousand nine hundred and seven at any general meeting of the Company every holder of ordinary stock shall be entitled to one vote in respect of every ten pounds of ordinary stock held by him.

29. The number of directors shall be five but the Company may vary the number provided that the number be not at any time more than six nor less than three. A.D. 1906.
Number of
directors.

30. The qualification of a director shall be the possession in his own right of not less than two hundred pounds of the ordinary stock of the Company. Qualification
of directors.

31. The whole of the existing directors shall go out of office at the first ordinary meeting of the Company held after the commencement of this Act. Rotation of
directors.

At that meeting the stockholders present in person or by proxy may either continue in office such existing directors or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the said existing directors being if they continue qualified eligible for election.

At the first ordinary meeting to be held in every subsequent year the stockholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect one or more person or persons to supply the place or places of the director or directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845.

The several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are duly elected in their stead.

32. The directors of the Company may in each half-year if they think fit appropriate out of the revenue of the Company and as part of the expenditure on revenue account any sum not exceeding an amount equal to one half per centum on the paid-up capital for the time being of the Company to be called "the renewal fund" to provide for the renewal maintenance and repair of their gasworks mains and pipes and may from time to time appropriate any portion of such fund to such purposes. Renewals.

Such fund shall be invested in any securities in which trustees are for the time being authorised to invest money and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one tenth of the paid-up capital for the time being of the Company.

A.D. 1906.

Provided that when and so often as the said fund shall reach such sum the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that if such fund be at any time reduced below such sum it may thereafter be again made up to that sum and so from time to time as often as such reduction shall happen.

Limitation
of profits.

33. Notwithstanding anything contained in the Act of 1879 as from the commencement of this Act the profits of the Company to be divided amongst the holders of the ordinary capital stock of the Company in any year shall not (except as by this Act provided) exceed the rate of five pounds per centum per annum which rate is in this Act referred to as "the standard rate of dividend."

The standard price to be charged by the Company for gas supplied by them shall be three shillings and ninepence per thousand cubic feet. Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary stock as follows:—

In respect of any year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a five per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds:

And in respect of any year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate by two shillings and sixpence on every hundred pounds of ordinary paid-up capital with a five per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds.

Insurance
and reserve
funds.

34. The powers of creating and maintaining an insurance and a reserve fund conferred on the Company by sections 22 and 24 of the Act of 1879 and the application of any excess of profit earned beyond that necessary to pay the rates of dividend by

that Act authorised shall apply to the profits of the undertaking under this Act and the rate of dividend in the said sections mentioned shall be the rate of dividend authorised by this Act. A.D. 1906.

35. The directors may declare and pay a half-yearly dividend out of the profits of the Company for any half year ending on the thirtieth day of June without the sanction or direction of a general meeting of stockholders but no such half-yearly dividend shall exceed one half of the authorised standard rate of dividend. Interim dividends.

36. The directors of the Company may at their discretion appoint suspend remove or dismiss such managers treasurers secretaries engineers collectors clerks agents and servants as they from time to time may think proper for the better carrying on the business of the Company and may determine their respective salaries wages commissions or other emoluments and may require security from all or any of such officers clerks or servants to such amount as they may think fit The provisions of sections 110 to 114 inclusive of the Companies Clauses Consolidation Act 1845 shall apply to all such officers clerks and servants and to their duties and accounts. Appointment remuneration &c. of officers.

37. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in a newspaper published in the west riding of the county of York and circulating in the Company's area of supply and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend. Closing of transfer books.

38. The Company may purchase or take on lease houses cottages and buildings for persons in their employment and offices show rooms and other buildings for the purposes of their undertaking and they may also erect maintain and let any of such buildings upon any lands for the time being belonging to or leased by the Company. Power to buy lease or erect buildings.

39. The Company may sell and dispose of or may let on lease for such period as they think fit any lands for the time being belonging to them which are not required for the purposes of their undertaking and any such disposal or lease may be for such consideration and subject to such reservations stipulations Power to sell and lease surplus lands.

A.D. 1906. — and conditions as the Company think fit and notwithstanding anything in the Gasworks Clauses Act 1871 contained the provisions of sections 128 to 132 of the Lands Clauses Consolidation Act 1845 shall not apply to any lands sold or disposed of by the Company under the powers of this section.

Quality of
gas.

40. The prescribed number of candles shall be fifteen.

Power to lay
pipes in
streets or
roads not
dedicated to
public use.

41. The Company may upon the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay and from time to time take up alter relay or renew in across or along such street or road such pipes and apparatus as may be requisite or proper for the furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protecting of pipes when so laid so far as they are respectively applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

For protec-
tion of Lan-
cashire and
Yorkshire
Railway
Company.

42.—(1) Whenever under the provisions of this Act the Company shall require to lay down place repair alter take up relay remove or renew any pipes or apparatus upon across or under any railway for the time being belonging to or worked by the Lancashire and Yorkshire Railway Company (in this section called "the railway company") or the stations bridges approaches or other works thereof or to construct any works adjoining or in close proximity to any such railway they shall give to the engineer of the said railway fourteen days' notice in writing of their intention to carry out any such works accompanied by sufficient plans.

(2) Such works including the making good and repairing of any roads over the railway and over any bridges and approaches which the railway company is or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Company shall be laid constructed and executed by and at the expense of the Company under the superintendence and to the reasonable satisfaction of the said engineer and according to plans to be previously reasonably approved by him and so as to avoid as far as possible any injury to any such railway or any of the works thereof and so as not to cause any interruption of the passage or conduct of the traffic over or at any such railway or station.

A.D. 1906.

(3) When the Company open or break up any road or pavement of any street or bridge or other works belonging to or repairable by the railway company they shall with all convenient speed complete the work for which the same shall be broken up and reinstate and make good the road or works so opened or broken up and shall keep any road or pavement so broken up in good repair for three months after replacing and making good the same and for such further time if any as the soil so broken up shall continue to subside.

(4) If the Company make delay in completing such work or reinstating and making good such road or works so opened or broken up or neglect to keep the road or pavement in repair as aforesaid the railway company may cause the work so delayed or omitted to be executed and the expense of executing the same shall be repaid to them by the Company.

(5) The Company shall repay to the railway company the expense of any temporary works or watching which the railway company may reasonably consider necessary to provide for the protection of the said railway or the traffic thereon during the carrying out of the works over upon or adjoining the railway or property of the railway company.

(6) If any injury shall owing to or by reason of any of the matters aforesaid arise to any such railway or works or interruption to such traffic the Company shall make full satisfaction in respect thereof to the railway company and in the event of any dispute as to the amount of such satisfaction the same shall be determined by arbitration in manner hereinafter provided.

(7) Any difference which may arise between the Company and the railway company under the provisions of this section shall unless otherwise agreed be settled by arbitration under the provisions of the Arbitration Act 1889 by an engineer to be appointed by the President of the Institution of Civil Engineers at the request of either party.

43. If the Company require to interfere with any water main of the Huddersfield Corporation (in this section referred to as "the corporation") all alterations thereof and all additional mains pipes and works rendered necessary by any works by this Act authorised shall respectively be made provided and laid by the corporation at the expense of the Company in accordance with plans sections and specifications to be previously submitted by the Company to and reasonably approved by the corporation before

For protec-
tion of cor-
poration of
Huddersfield.

A.D. 1906. the commencement of the work Provided always that if the corporation shall not approve or disapprove any plans sections or specifications so submitted to them within twenty-eight days after the same are delivered the Company may themselves proceed without the approval of the plans sections and specifications as aforesaid and the Company shall be responsible for and make good to the said corporation all costs losses damages and expenses sustained by them by reason of the exercise by the Company of any powers granted to them under this Act or by reason of any damage to be occasioned to persons or property or by reason of any interruption or obstruction to the supply of water by the corporation whether by the Company or their contractors or their respective agents officers servants or workmen.

Anti-fluctuators.

44. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator of approved make or pattern and shall at all times at his own expense keep such anti-fluctuator in proper repair and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Power to supply and hire fittings not subject to distress.

45.—(1) The Company may sell let for hire and otherwise deal in fix repair and remove but shall not manufacture engines stoves ranges pipes fittings and other apparatus appliances and things (in this section called "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such fittings

have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or to a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

A.D. 1906.

46. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

As to construction and placing of pipes &c. between mains and meters.

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specifications shall be published twice in some newspaper circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice upon the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :

A.D. 1906.

(6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any question as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Equality of
treatment.

47. The Company shall not give any preferential price as between any consumers who shall take a supply from the Company for like purposes and under similar conditions and circumstances.

Gas con-
sumers to
give notice
to Company
before re-
moving.

48. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed on every demand note for gas rent payable to the Company.

Power to re-
fuse to sup-
ply persons
in debt for
other pre-
mises.

49. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Period of
error in de-
fective
meters.

50. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen in the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

51. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of the Acts of 1860 and 1879 and of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Company. Provided the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

A.D. 1906.
No penalty
in case of un-
avoidable
cause.

52.—(1) The Company may charge for any gas supplied through a prepayment meter a not greater charge rate or rent than for gas supplied to private consumers through any other kind of meter or by any other method of supply.

Charges for
gas supplied
by means of
prepayment
meters.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meters and the maximum sum to be so charged shall be at the rate of one shilling per thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and of fittings used therewith. The said charges shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Company in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter to the Company and the Companies Acts applicable to ordinary meters shall so far as applicable apply to prepayment meters.

(4) For the purposes of this section "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

53. Proceedings for the recovery of any demand made under the authority of the Acts of 1860 and 1879 and this Act whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court. Provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
demands.

A.D. 1906.

Authentica-
tion of
notices by
Company.

54. Any notice to be served by the Company under the Acts of 1860 and 1879 and this Act on a person or body supplied with gas shall be sufficiently authenticated by the signature of the secretary of the Company or if it be a notice to pay any charge in respect of a supply of gas by the name of the secretary or collector of the Company being either printed or affixed by stamp.

Costs of Act.

55. All the costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Repeal of
Acts.

56. There shall be repealed as from the commencement of this Act the Acts mentioned in the schedule to this Act to the extent in the second column of that schedule mentioned.

Commence-
ment of Act.

57. This Act shall come into operation on the first day of January one thousand nine hundred and seven.

The SCHEDULE referred to in the foregoing Act.

Title.	Extent of Repeal.
The Mirfield Gas Act 1860.	Sections fourteen fifteen seventeen eighteen twenty to twenty-five twenty-seven twenty-nine thirty thirty-four to forty forty-two to forty-six.
The Mirfield Gas Act 1879.	Sections thirty-eight forty forty-three forty-four forty-eight fifty to fifty-three and sixty.

Printed by EYRE and SPOTTISWOODE,

FOR

ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C. ; or
OLIVER AND BOYD, EDINBURGH ; or
H. PONSQNBY, 116, GRAFTON STREET, DUBLIN.